RESUME
CS MRITYUNJAY PRASAD ROY
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Mr. Mrityunjay Prasad Roy (FCS, LL.B) is fellow member of Institute of Company Secretaries of India (ICSI) and a Law Graduate. I have more than 20+ years of experience in corporate laws and compliances, Due Diligence, Acquisition, Take Over and Corporate Restructuring of Listed & unlisted Company Revocation of Suspension, Direct Listing, Preferential Issues and compliances pertaining to the Companies Act, and I have worked with various Groups/Corporate Houses in India. My experience in the field of Corporate Law, RBI and RBI matters like ECB, FDI. Acquisition & transfer of Ownership of NBFC, Foreign Investment, Loan Documentation, Joint Venture, Strategic Alliances, and Intellectual Property like Trade mark. Vast experience for setting up and its compliances for NIDHI company, Producer Company, Multi State Cooperative Society Under Ministry of Agriculture, and Govt. of India. He has also worked for arrangement of Fund/Business Loan/ Working Capital Loan/ LAP etc. from Bank and Private Financial Institutions and also compounding, approvals/sanctions of Department of Company Affairs, Company Law Tribunals, Regional Director, NCLT matters with respect to various matters under the Companies Act, 2013.

PAST EXPERIENCE FROM 2003 TO 2015

Presently Practicing as Company Secretaries Since 2016 to till date
PACL LIMITED (A Leading real Estate Company with Multi Business) 2009 TO 2015
E-Meditek Solutions Limited. (TPA Insurance and IT business) 2007 TO 2009
Ceasefire Industries Limited (Manufacturing and Marketing of Fire Extinguisher) 2006-2007
VLS Finance Limited (Finance, Merchant Banking & Securities Market Business) 2003 TO 2005

AREAS OF EXPERTISE

CORPORATE LAWS:

i. Advisory /consultancy in corporate and allied laws
ii. Preparation/filing and appearance before National Company Law Tribunal (NCLT) in Company Law Matters
iii. Approvals /Sanctions from of Ministry of Company Affairs, Regional Director, Registrar of Companies
iv. Private Equity, Preferential Issue, Right Issue, Bonus Issue and allotment of Securities.
v. Incorporation of Company, LLP, Partnerships. Nidhi Company, Section 8 Company, Producer Company, NBFC, HUF, Trust, Society, NGO etc.
vi. RERA registration and its compliances for real estate company and real estate agents in the state of Delhi, Haryana, Punjab Uttar Pradesh, Chandigarh etc
vii. Compliances Services under the Companies Act, 2013 and uploading Statutory Forms.
viii. Maintaining statutory secretarial records and statutory books, statutory registers.
ix. Secretarial Audit as required under the provisions of the Companies Act, 2013.
x. Certification of Various E- Forms & Returns in accordance with the provisions of Companies Act, 2013.

xi. Advisory Services on the constitution of Board of Directors, Independent Directors, women Directors, small shareholders Directors, Audit Committee, Remuneration and Grievance Committee.

xii. Complete support and advisory services for implementation of Corporate Social Responsibility and preparation drafting of CSR policy in compliance with the provisions of the Companies Act 2013.

xiii. Drafting Director's Report and Board Evaluation Statement as required under the provisions of the Companies Act, 2013.

xiv. Procedural Statutory filings with the Registrar of Companies, MCA-21, Govt of India on behalf of Indian and Foreign companies operating as a Branch office in India.

xv. Organizing and conducting Board Meetings, Annual General Meeting, Audit Committee Meeting and other meeting Physically & via Video Conferencing for Companies and circulating minutes.

xvi. Organizing Postal ballot and e-ballot services and working as scrutinizers for certifying the voting results.

xvii. Advisory services to the Directors of the companies on phone calls, Video calls, by e-mails or in meetings.

xviii. Charge filings and Search Reports for lending banks and Financial Institutions.

xix. Conducting due diligence on a company or generating any other specific search reports in respect of the companies from the records available with the regulatory authorities (Registrar of Companies).

xx. Corporate restructuring/Merger/amalgamation/Demerger

xxi. Complete company Law legal advisory and transactional services for amalgamation, reconstruction, reorganization and winding up of companies.

FEMA / RBI COMPLIACES

Incorporation, Acquisition & Transfer,Prior Approval of RBI in case of change of Control and Management,Compliance of the Non-Banking Financial (Deposit Accepting or Holding)/(Non-Deposit Accepting or Holding) Companies Prudential Norms (Reserve Bank) Directions, 2007 and other Directions, Regulations, Notifications or Circulars issued by RBI time to time.

Obtaining Prior Approvals of RBI for External Commercial Borrowings and advising thereof for compliance under FEMA rules and regulations.

Due diligence of Companies for foreign Investments and compliances under FEMA and other regulatory authorities.

Setting up of Business of Foreign Entity in India, including, setting up of Branch Office, Liaison Office in India etc.

Preparation & certification of forms, ECB-2, FC-GPR, FC-TRS, etc. required to be filed under FEMA and filing other returns of NBFC companies in the office of RBI.

Representation for clients before Reserve Bank of India Authorities.

SECURITIES LAW & EXCHANGE COMPLIANCES

Scheme of Arrangement, Amalgamation, Reduction of capital, Demerger, Revocation of Suspension Preferential Issue, Right Issue, Compliance with Listing Agreement, Clause 49 – Corporate Governance,

Buyback of securities, Letter of Offer for Rights, Other documents related to the issue of securities., Liasoning and appearance with Stock Exchanges, SEBI and other Intermediaries.

OTHERS:

- Advising and drafting of Joint venture/ shareholders/ Technical Collaboration Agreements and any other special and general documents such as agreements, deeds and guarantees.
- Support the organization by drafting & vetting of the legal contracts/POA/MOU/Lease agreements, NDAs, Undertakings, Addendum and Amendment to Contracts in a way that safeguards the interest of organizations & its stakeholders
- Setting up of a Compliance model for the Organization.
- Assisting in raising funds through private equity route, external commercial borrowings, etc.
- Assisting Non- Resident clients in appraising proposals for project in India and Abroad.
- Undertaking due diligences of Investee entities in behalf of investor clients
- Acquisition and Disposal (Buy and Sell) of listed companies and NBFCs for clients.
- Complete and expert compliances of Nidhi Company, Producer Company and Multistate Cooperative Society Under Ministry of Agriculture, Govt. of India.
- Incorporation of Company and setting up business overseas like DUBAI, SINGAPORE, THAILAND & HONGKONG etc.
- Arrangement of P E Fund/Business Loan/ Working Capital Loan/ LAP etc. from Bank and Private Financial Institutions.

TRADE MARK & OTHER LICENSES

- Filing of Trademark application and its reply to Registrar of Trademark. Govt. of India and arrangement and approval of other Licenses from different departments of Govt. Of India.

- Factory/Establishment/ Shop/Business/ Indian Subsidiary Branch Set up licenses all over India like FSSAI Central/State License. Udyog Aadhar Registration, Import Export Code, Shop and Establishment License, Gumastha License(Maharstara), GST registration, Liquor License, Health Trade License, Fire Safety License, Lift Clearance, Environmental Clearance, Drug License, Trademarks, Logo Registration, Building Plan, Export Import License etc.

CORE COMPETENCIES:

Secretarial Work as per Companies Act-2013	Legal & Commercial Affairs	Corporate compliances Unser FEMA (RBI) & Other Laws
Drafting / Documentation	Litigation Management	Liaison & Coordination

Maintained & managed Corporate Compliances of 640 Companies engaged different business including NBFC with team

LIASIONONG SERVICES AND COMPLIANCE :

- Ministry of Information & Broadcasting, Govt. of India, Ministry of Finance, Govt. of India.
- Economic offence Wing, Delhi, Chandigarh, & Mumbai, Enforcement & Directorate &Ministry of Commerce and Industry, Govt. of India.

THANK YOU